



CHAPTER xxxvii.

An Act to confirm a Provisional Order made by one of His Majesty's Principal Secretaries of State under the Provisional Order (Marriages) Act 1905.

[2nd June 1911.]

WHEREAS the Right Honourable Winston Leonard Spencer-Churchill one of His Majesty's Principal Secretaries of State has made the Provisional Order set out in the schedule hereunto annexed under the provisions of the Provisional Order (Marriages) Act 1905:

5 Edw. 7.
c. 23.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as set out in the schedule hereunto annexed is hereby confirmed.
2. This Act may be cited as the Provisional Order (Marriages) Confirmation Act 1911.

Order in
schedule
confirmed.

Short title.

[Ch. xxxvii.] *Provisional Order (Marriages)* [1 & 2 GEO. 5.]
Confirmation Act, 1911.

A.D. 1911.

S C H E D U L E.

WHEREAS power is given to a Secretary of State by the Provisional Order (Marriages) Act 1905 in the case of marriages solemnized in England which appear to him to be invalid or of doubtful validity by reason of some informality to make a Provisional Order for the purpose of removing the invalidity or doubt :

And whereas the district church of Thorpe Acre in the parish of Dishley in the county of Leicester in the diocese of Peterborough has been licensed for marriages of persons resident within a Particular District assigned to it pursuant to the Church Building Act 1831 :

And whereas divers marriages nevertheless have been solemnized in the said church of Thorpe Acre of persons resident without such District :

And whereas it is expedient in the circumstances aforesaid to remove all doubts touching the validity of the marriages solemnized in the said church of Thorpe Acre :

Now therefore I the Right Honourable Winston Leonard Spencer-Churchill one of His Majesty's Principal Secretaries of State in pursuance of the powers conferred on me by the said Provisional Order (Marriages) Act 1905 do hereby order that on and after the date of the Act of Parliament confirming this Order the following provisions shall have effect :—

1. All banns of matrimony and marriages of persons resident without such District published and solemnized before the date of this Order in the church of Thorpe Acre in the parish of Dishley in the county of Leicester in the diocese of Peterborough shall be and shall be deemed to have been as valid as if they had been published and solemnized in a church in which such banns might be published and marriages solemnized lawfully.

2. A minister who has solemnized any marriage referred to in the first paragraph of this Order shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriages.

3. The registers of the marriages so solemnized or copies of the registers shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized or copies thereof are by law receivable in evidence.

Given under my hand this twentieth day of October One thousand nine hundred and ten.

(Signed) WINSTON S. CHURCHILL.

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